



Appeal Decision

Site visit made on 17 August 2026 by S Manson DipTP MRTPI

Decision by John Morrison BA (Hons) MSc MRTPI

an Inspector appointed by the Secretary of State

Decision date: 1 September 2026

Appeal Ref: 6010078

Windmill Court County House, Keighley Road, Illingworth, Halifax HX2 8YB

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Gillian Holden against the decision of Calderdale Metropolitan Borough Council.
 - The application Ref is 25/01274/FUL.
 - The development proposed is a single storey extension to catering kitchen.
-

Decision

1. The appeal is allowed and planning permission is granted for a single storey extension to catering kitchen at Windmill Court County House, Keighley Road, Illingworth, Halifax HX2 8YB in accordance with the terms of the application, Ref 25/01274/FUL, subject to the following conditions:
 - 1) The development hereby permitted shall begin not later than three years from the date of this decision.
 - 2) The development hereby permitted shall be carried out in accordance with the following approved plans: Existing & Proposed Site Plan & Location Plan, 1052-25-035 Rev A; and Proposed Plan & Elevations, 1052-25-037.
 - 3) The materials to be used in the construction of the external surfaces of the development hereby permitted shall match those used in the existing building.

Appeal Procedure

2. The site visit was undertaken by a representative of the Inspector whose recommendation is set out below and to which the Inspector has had regard before deciding the appeal.

Preliminary Matters

3. A Revised National Planning Policy Framework (the Framework) was published on 17 August 2026. There have been some layout and subsequent paragraph numbering changes, as well as minor relevant alterations to Green Belt matters. I am however satisfied that, having reviewed the relevant changes, they do not have a material bearing on the substance of the main issue or indeed the arguments of the main parties thereon. Since they would not therefore be prejudiced, I have proceeded without further consultation.

Main Issues

4. The main issues are a) whether the proposal would be inappropriate development in the Green Belt; b) its effect on the openness of the Green Belt; and c) if the proposal is inappropriate development, whether the harm by reason of inappropriateness, and any other harm, is clearly outweighed by other considerations, as to amount to very special circumstances required to justify it.

Reasons for the Recommendation

Inappropriate Development

5. The Framework sets out, amongst other things, that development is inappropriate in the Green Belt, unless it falls within a given set of exceptions. Inappropriate development is harmful by definition. One exception is the reuse, extension, alteration or replacement of an existing building provided it does not result in a disproportionate increase in size compared to the original building. Policy GB1 of the Calderdale Local Plan 2018/19-2032/33, 2023 (LP) reflects the stance of the Framework in this regard. Neither defines what disproportionate is, nor set any benchmark in terms of size of extensions. It is therefore a matter of judgement.
6. The appeal building is a large former public house which now operates as a hotel and holiday-let accommodation site. The Council's evidence, including historic imagery within its delegated report, indicates that several new structures have been erected within the wider site and some have then been expanded. That said, Green Belt policy as far as it is relevant to the proposed development concerns the extension of a building, not buildings with which it is associated or within its curtilage. Extensions to dwellings and outbuildings within gardens aside.
7. Some extensions appear have been carried out to the building subject of the appeal. These appear to include a kitchen extension in 2004 and improvements to the entrance and enlargements of the function room in 2016. An extension to the owner's living accommodation was approved in 2017 but it is unclear if this was a detached building or part of the appeal building.
8. Neither party have provided a detailed assessment of additions to the original building, either in floorspace or volumetric terms. From my site visit, it was difficult to discern the additions visually. Having it in mind that I am unable therefore to be even close to definitive in regard to how the building has grown since it was original, and even taking into account the contextually small scale of the appeal proposals as well as the ambiguity on the owner's living accommodation element, I cannot be sufficiently certain that a disproportionate increase has not occurred and subsequently won't be following the appeal works. This is an important point to establish, given the national policy stance on development in the Green Belt.
9. With this in mind, I have to conclude that the appeal scheme would be inappropriate development in the Green Belt, contrary to resistance of such as it is set out by the Framework and Policy GB1 of the LP.

Openness

10. Openness is an essential characteristic of the Green Belt. It has been established that such has both a spatial and visual aspect. It is true that the proposals would take up land which is currently undeveloped, but the extension would be contextually very small and largely contained by the existing building's envelope.

It's placement on an inconspicuous elevation, along with its use of appropriate materials would significantly limit its visual effects. There would therefore be an unavoidable reduction in the Green Belt's openness but one that would, in the grand scheme for the above reasons, be only very limited in its harm. This would be in addition to that caused by the inappropriateness of the appeal scheme and result in further conflict with the relevant aims of the above policy positions.

Other Considerations

11. There is a clear need for the appeal scheme. Having regard to the appellant's evidence and the contained growth of the business operation at the site over the last decade it seems reasonably clear that it continues to thrive. The existing kitchen is indeed very small for the size of the related commercial operations, and the appeal works would appear to be limited solely to what is required by the existing business functionally speaking.
12. The appeal site is located within both the Thornton–Queensbury Landscape Character Area and the Northern Moorlands and Fringes Special Landscape Area. The Council is satisfied that the scheme would not result in harm to either, given the siting of the proposal and the use of matching materials, I have no reason to disagree with their conclusions in either respect.

Conditions

13. In addition to the standard time period for commencement of the development, I have set out a condition requiring the development to accord with the approved plans for enforcement purposes. A condition requiring the use of materials matching that of the existing building is also necessary to ensure an appropriate appearance for the development

Conclusion and Recommendation

14. Substantial weight should be afforded to any harm to the Green Belt. This would be the case in terms of the inappropriateness of the proposals and the reduction, albeit very minor, in the openness of the Green Belt. The other considerations I have set out, specifically in paragraph 11 above, are compelling. Particularly in light of the effect of the scheme on the Green Belt's openness and that it is purely ambiguity that has led to the conclusion on inappropriate development. I therefore attach greater than substantial weight to the other considerations, such that the very special circumstances needed to justify the proposals have been demonstrated. With this and the above in mind, I recommend that the appeal is allowed.

S Manson

APPEAL PLANNING OFFICER

Inspector's Decision

15. I have considered all the submitted evidence and my representative's report and on that basis the appeal is allowed, subject to the conditions set out above.

John Morrison

INSPECTOR